
MASTER SERVICES AGREEMENT (MSA) — Template

■■ **IMPORTANT:** This is a drafting starting point only. It **MUST** be reviewed and signed off by a qualified solicitor before being used with any customer.

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Key clauses that need expert review: limitation of liability, indemnification, jurisdiction, termination, IP ownership.

THIS AGREEMENT is made on [DATE]

BETWEEN:

(1) PLAY IT LOVE IT LTD, a company incorporated in [Scotland/England] with company number [COMPANY NUMBER], whose registered office is at [REGISTERED ADDRESS] ("Player Portal", "we", "us")

AND:

(2) [ACADEMY LEGAL NAME], a [sole trader / partnership / limited company] [with company number, if applicable] whose address/registered office is at [ACADEMY ADDRESS] ("Academy", "you")

(each a **Party** and together the **Parties**)

1. Definitions

- **Services** — the Player Portal SaaS platform made available at theplayerportal.net
- **Customer Data** — all data uploaded, generated, or accessed by the Academy and its users
- **Personal Data** — as defined in UK GDPR
- **Effective Date** — the date this Agreement is signed by both Parties
- **Subscription Term** — as specified in the Order Form
- **Fees** — the subscription fees plus per-transaction platform fees set out in the Order Form
- **Subscribers** — the parents, players, coaches and other end users the Academy adds to the platform
- **Confidential Information** — any non-public information disclosed by one Party to the other

2. Services

2.1 Player Portal grants the Academy a non-exclusive, non-transferable, revocable licence to use the Services during the Subscription Term, subject to payment of the Fees.

2.2 Player Portal will use reasonable commercial efforts to maintain **99.5% uptime** measured monthly, excluding scheduled maintenance, force majeure, or issues caused by third-party providers (Supabase,

Stripe, Vercel).

2.3 Player Portal may update, modify, or deprecate features at any time, provided it does not materially degrade the Services during the Subscription Term.

3. Fees and Payment

3.1 The Academy shall pay the Fees set out in the Order Form.

3.2 Platform fees are charged on each transaction processed through the Services and are deducted automatically via Stripe Connect.

3.3 Subscription fees are billed monthly in advance. Late payments attract interest at 4% above the Bank of England base rate.

3.4 Fees are exclusive of VAT. Player Portal will invoice for VAT at the prevailing rate if registered.

3.5 Player Portal may increase prices with 30 days' written notice. The Academy may terminate if the increase exceeds 10% per annum.

4. Data Protection

4.1 The Parties agree that:

- The Academy is the **Data Controller** in respect of Customer Data
- Player Portal is the **Data Processor**

4.2 Both Parties shall comply with UK GDPR, the Data Protection Act 2018, and all applicable data protection laws.

4.3 The Data Processing Agreement (DPA) attached as Schedule 1 forms part of this Agreement.

4.4 The Academy warrants that it has obtained all necessary consents from parents and legal guardians before uploading any Personal Data of children to the Services.

5. Academy Responsibilities

5.1 The Academy is responsible for:

- Its own ICO registration
- Valid DBS checks for all coaches with access to Personal Data of children
- A documented Safeguarding Policy and Designated Safeguarding Lead
- Appropriate public liability and safeguarding insurance
- Appropriate parental consents for all data uploaded
- The accuracy and lawfulness of all Customer Data
- The actions of its users (admins, coaches, parents)

5.2 The Academy shall not use the Services:

- In a way that infringes any third-party rights

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- To upload unlawful, defamatory, obscene, or harmful content
 - To reverse-engineer, copy, or benchmark the Services for a competing product
 - To spam or unlawfully contact any person
 - In breach of the Player Portal Acceptable Use Policy

5.3 The Academy warrants that it has authority to bind itself to this Agreement.

6. Intellectual Property

6.1 Player Portal retains all right, title, and interest in the Services, including all underlying software, design, and trademarks.

6.2 The Academy retains all right, title, and interest in Customer Data.

6.3 The Academy grants Player Portal a limited, non-exclusive licence to use Customer Data solely to provide the Services.

6.4 Neither Party acquires any rights in the other's trademarks, logos, or Confidential Information.

7. Confidentiality

7.1 Each Party shall treat the other's Confidential Information as strictly confidential and not disclose it to third parties without prior written consent, except to its own staff, advisors, or sub-processors under equivalent obligations of confidentiality.

7.2 This obligation survives termination of this Agreement for 3 years.

8. Limitation of Liability

■■ **SOLICITOR REVIEW ESSENTIAL — The wording and numbers here must be carefully tailored.**

8.1 Nothing in this Agreement limits liability for:

- Death or personal injury caused by negligence
- Fraud or fraudulent misrepresentation
- Any liability that cannot lawfully be limited

8.2 Subject to clause 8.1, each Party's total aggregate liability arising out of or in connection with this Agreement, whether in contract, tort (including negligence), or otherwise, is capped at **the greater of (a) the Fees paid by the Academy to Player Portal in the 12 months preceding the event giving rise to the claim, or (b) £1,000.**

8.3 Neither Party shall be liable for any indirect, incidental, consequential, special, or punitive damages, including loss of profits, revenue, business, reputation, or data.

9. Indemnification

9.1 The Academy shall indemnify Player Portal against all losses, costs, damages, and expenses arising from:

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- Any breach by the Academy of clauses 4.4, 5.1, 5.2, or 5.3
 - Any claim by a data subject that the Academy failed to obtain valid consent
 - Any claim arising from Customer Data being inaccurate or unlawful
 - Any breach of safeguarding or child protection laws by the Academy

9.2 Player Portal shall indemnify the Academy against all losses, costs, damages, and expenses arising from:

- A proven breach of UK GDPR by Player Portal as Data Processor
- A third-party claim that the Services themselves infringe intellectual property rights

10. Term and Termination

10.1 This Agreement commences on the Effective Date and continues for the Subscription Term, renewing automatically for successive equivalent terms unless either Party gives 30 days' written notice.

10.2 Either Party may terminate immediately on written notice if the other:

- Commits a material breach that is not cured within 14 days of written notice
- Becomes insolvent or enters liquidation
- Commits persistent breaches

10.3 On termination:

- All rights to use the Services cease
- Player Portal will retain Customer Data for **30 days** to enable export, then delete
- Outstanding Fees remain payable
- Clauses that by their nature should survive (Confidentiality, Liability, Indemnity, IP) survive termination

11. Force Majeure

11.1 Neither Party is liable for failure to perform due to events beyond reasonable control, including: natural disasters, war, terrorism, pandemic, government action, failure of third-party providers (Supabase, Stripe, Vercel).

11.2 The affected Party shall notify the other within 48 hours and use reasonable efforts to mitigate.

12. Governing Law and Jurisdiction

■■ **SOLICITOR REVIEW — confirm jurisdiction matches your registered office.**

12.1 This Agreement is governed by the laws of **[Scotland/England and Wales]**.

12.2 Disputes are subject to the exclusive jurisdiction of the courts of **[Scotland/England and Wales]**.

12.3 The Parties shall first attempt to resolve disputes through good-faith negotiation for 30 days before commencing court proceedings.

13. General

13.1 **Assignment:** Neither Party may assign this Agreement without the other's prior written consent, except to a successor in a merger or sale of business.

13.2 **Notices:** All formal notices must be sent in writing to the registered office of each Party.

13.3 **Entire Agreement:** This Agreement (including the DPA and Order Form) is the entire agreement between the Parties and supersedes all prior discussions.

13.4 **Amendments:** Must be in writing and signed by both Parties.

13.5 **Severability:** If any provision is found unenforceable, the rest remains in force.

13.6 **Waiver:** No failure to enforce any right constitutes a waiver.

13.7 **Rights of Third Parties:** A person who is not a Party has no rights under the Contracts (Rights of Third Parties) Act 1999.

Signed for and on behalf of:

PLAY IT LOVE IT LTD

Signature: _____

Name: John Leitch

Title: Director

Date: _____

[ACADEMY LEGAL NAME]

Signature: _____

Name: _____

Title: _____

Date: _____

Schedule 1 — Data Processing Agreement

See separate document: `/legal/dpa.md` or the live Player Portal DPA at theplayerportal.net/dpa

Schedule 2 — Order Form

Academy name: [ACADEMY NAME]

Subscription Plan: [Starter / Pro / Enterprise]

Base monthly fee: £[AMOUNT]

Platform transaction fee: [PERCENTAGE]%

Subscription Term: [e.g. 12 months]

Start date: [DATE]

Renewal: Automatic unless 30 days' notice given

Sibling discount: [ENABLED @ X% / DISABLED]

Quarterly billing: [ENABLED @ X% discount / DISABLED]

Retention offer (on cancel): [ENABLED @ X% for Y months / DISABLED]

White-label domain: [YES: domain.com / NO]

Academy-side contacts:

- Primary admin: [name, email]
- Designated Safeguarding Lead: [name, email]
- Billing contact: [name, email]

END OF TEMPLATE — TO BE COMPLETED AND SIGNED OFF BY SOLICITOR BEFORE USE.